

CO.1 The Owner-Builder's Legal Position in Colorado

What Colorado actually requires of a person building their own house — the licenses that do not exist, the two state trade permits that do, and the one condition hidden inside the homeowner electrical exemption.

Before you use this document

This is a process reference, not legal advice. Colorado adopts no statewide residential building code: each county and each municipality decides for itself whether to require a building permit and which code edition to enforce, and a few counties require no building permit at all. Electrical and plumbing run on a separate, statewide track. Confirm every item with the office that will actually issue it before you rely on it. Statute text was read from the official Colorado Revised Statutes 2026 at leg.colorado.gov in August 2026; statutes change.

THE SHORT VERSION

Colorado has **no statewide general contractor license** and **no statewide residential building code**. You do not apply to the State for permission to build your own house — there is no state affidavit, no exemption to claim, no board that reviews you. Whether a building permit exists at all is a decision your county or city made, or never made. **But two things are statewide, and they are the two things owner-builders most want to do themselves:** electrical work and plumbing work each require a state license, each carries a homeowner exemption — and **each installation requires a permit and an inspection regardless of who does the work**. Where your local government does not run its own qualifying program, that permit comes from a state board and a state inspector drives out to your site.

Absence of a state GC license: Title 12 of the Colorado Revised Statutes 2026 licenses electricians (article 115) and plumbers (article 155) but contains no general-contractor, home-builder, or residential-construction article — checked August 2026. Building code adoption: C.R.S. 30-28-201(1), 30-28-205(1); 31-15-601.

THE ABSENCE — AND ITS EXACT SHAPE

Two absences, and they are not the same absence. **No state contractor license:** Title 12 of the Colorado Revised Statutes — the professions and occupations title — licenses electricians and plumbers and says nothing about general contractors or home builders. **No statewide residential building code:** the county statute is permissive, not mandatory. "*A board of county commissioners is authorized to adopt ordinances and a building code ... in all or part of the county, and not embraced within the limits of any incorporated city or town*" (30-28-201(1)) — and the enforcement section makes the permit duty conditional: "*After the adoption of the building code, it shall be unlawful to erect, construct, reconstruct, alter, or remodel any structure, dwelling, or building in the designated area ... without first obtaining a building permit from the county building inspector*" (30-28-205(1)). No adoption, no permit

requirement.

Municipalities get their powers from 31-15-601, and home-rule cities under article XX of the Colorado Constitution set their own. The practical result is what makes Colorado different from almost every other state: **your neighbor across a county line may be under a completely different code — or under none.**

Print-date warning — say it the careful way

The accurate sentences are: "**As of August 2026 no Colorado state agency issues a general contractor or home builder license,**" and "**Colorado adopts no statewide residential building code.**" Neither means "no rules" or "no permits" — two trades are licensed statewide and their permits are required statewide. Nor are these timeless: legislatures create licenses, and Colorado has legislated repeatedly here since 2022. Verify at leg.colorado.gov.

C.R.S. 30-28-201(1), 30-28-205(1), 31-15-601; Colo. Const. art. XX. Absence of a GC or HVAC licensing article verified by reading the article list of Title 12, Colorado Revised Statutes 2026, August 2026. One statutory exception worth knowing: county building codes may except "buildings or structures used for the sole purpose of providing shelter for agricultural implements, farm products, livestock, or poultry" (30-28-201(1), 30-28-205(1)) — a barn is not a house.

ELECTRICAL — C.R.S. ARTICLE 115 (STATE ELECTRICAL BOARD)

The licensing rule is flat (12-115-109(1)). The homeowner carve-out is in 12-115-116(2), and the whole document turns on reading it slowly:

C.R.S. 12-115-116(2), in full

*"Nothing in this article 115 shall be construed to require any individual to hold a license before doing electrical work on his or her own property or residence **if all such electrical work, except for maintenance or repair of existing facilities, is inspected as provided in this article 115**; if, however, the property or residence is intended for sale or resale by a person engaged in the business of constructing or remodeling the facilities or structures or is rental property that is occupied or is to be occupied by tenants for lodging, either transient or permanent, or is generally open to the public, the owner shall be responsible for, and the property shall be subject to, all of the provisions of this article 115 pertaining to inspection and licensing, unless specifically exempted therein."*

THE TRAP — the exemption is conditioned on the inspection

The load-bearing word is "**if**". Colorado does not give a homeowner an unconditional right to do their own wiring; it gives a right that exists **only if all the work is inspected**. Skip the permit and the inspection and you have not merely missed an inspection — **the exemption you were relying on never applied to the work**, which leaves unlicensed electrical work behind your drywall. Practicing the profession of an electrician without an active license is a **class 2 misdemeanor** (12-115-123; 12-20-407(1)(a)(V)(B)).

Compare the plumbing exemption three articles later, below: it contains no inspection condition at all. Two near-identical sentences in the same title, and only one of them puts your license exemption at risk if you skip an inspection. This asymmetry appears in no general owner-builder guide we have seen — and it is the single most important sentence in this kit.

What takes the exemption away entirely

Two exclusions, the second broader. Under 12-115-116(2) the exemption is lost if the property is "*intended for sale or resale by a person engaged in the business of constructing or remodeling,*" is rental property occupied or to be occupied by tenants, or is open to the public. Under 12-115-116(4) — no "in the business" qualifier — property "*developed for sale, lease, or rental*" is subject to the whole article. **Read together, the safe rule is: build it to live in, not to sell or rent.**

What the exemption does **not** require is worth saying too: the statute says "*his or her own property or residence.*" There is **no occupancy condition** in the text — no requirement that you already live there, which would be impossible for a house under construction. Guides that print "a home you own and live in" are adding words the statute does not contain. Your local building department may impose its own occupancy condition on the building permit; that is a separate, local question. And one genuine free pass: "*maintenance or repair of existing facilities*" on your own property needs no license, no board inspection, and no fee (12-115-116(6)(a)) — defined narrowly as replacing components "*with new components that serve the same purpose*" (12-115-116(6)(c)). Building a new house is not maintenance or repair.

The permit: who issues it, and when you buy it

"An individual required to have electrical inspection under this article 115 shall apply to the board for an electrical permit ... **except where an incorporated town or city, county, city and county, or qualified state institution of higher education has a building department that meets the minimum standards of this article 115 and that processes applications for building permits and inspections, in which case the individual shall apply to the building department**" (12-115-120(1)(a)(I)). For new construction, the owner "*shall have the electrical portion of the installation ... inspected by a state electrical inspector*" except in a jurisdiction "*having its own electrical code and inspection program equal to the minimum standards*" of the article (12-115-120(2)(a)). Timing is not negotiable: "*Prior to the commencement of any electrical installation, the person making the installation, who must be a qualified applicant, shall apply for a permit and pay the required permit fee*" (12-115-120(2)(b)). The state inspector must inspect within **three working days** of receiving the inspection application.

And you may buy it yourself: "*qualified applicant*" expressly includes "**a homeowner performing work on the homeowner's home**" (12-115-120(11)(c)), added in 2022 and effective January 1, 2023. Applying when you are **not** a qualified applicant is itself a violation (12-115-122(1)(q)), so a friend or an unregistered helper cannot pull it for you.

The enforcement mechanism nobody expects — your meter

Colorado does not chase you; it waits at the meter. On final inspection and approval the board notifies the utility, and "**A utility shall not provide service to any person required to have electrical inspection under this article 115 without proof of final approval**" (12-115-120(1)(b), (c)). The only exceptions are situations the board or local authority declares an emergency, for a maximum of seven days, and approved tiny-home connections. However quiet your county is about building permits, **an unapproved house does not get permanent power.**

Permits expire. Board permits run twelve months; the board may issue one for up to three years if you demonstrate **at the time of application** that the work is substantial, or extend six months for extenuating circumstances notified before expiry (12-115-120(6)(a)). Ask for the long permit when you apply — an owner-build routinely outruns twelve months, and once a permit expires you must buy a new one before any inspection can happen (12-115-120(6)(b)).

The code is a floor, not a ceiling — and it just moved. The board adopts electrical standards by rule, "*governed when appropriate by the standards in the most current edition of the national electrical code*" (12-115-107(2)(a)(I)), so the adopted edition lives in board rule, not in the statute. As of this printing the rule incorporates "*the National Fire Protection Association standard number 70, hereafter known as the National Electrical Code, 2026 Edition*," and states "*The effective date shall be August 1, 2026*" (3 CCR 710-1, Rule 1.5(A)). If you are reading a guide, a course, or an inspector's handout written before mid-2026, it is on the previous edition. The same statute preserves local authority to enforce standards "*more stringent than the minimum standards adopted by the board*," so confirm both: the board's current rule, and your jurisdiction's amendments.

C.R.S. 12-115-109(1), 12-115-116(2), (4), (6)(a), (6)(c), 12-115-120(1)(a)(I), (1)(b), (1)(c), (2)(a), (2)(b), (6), (11)(c), 12-115-122(1)(q), 12-115-123, 12-115-107(2)(a)(I); 12-20-407(1)(a). Board rules at 3 CCR 710-1, sos.state.co.us/CCR. All read August 2026.

PLUMBING AND GAS PIPING — C.R.S. ARTICLE 155 (STATE PLUMBING BOARD)

Same shape, three differences that matter. The exemption, verbatim: "*Nothing in this article 155 requires an individual to hold a license to perform plumbing work on the individual's own property or residence ... except that, if such property or residence is intended for sale or resale by a person engaged in the business of constructing or remodeling the facilities or structures or is rental property that is occupied or is to be occupied by tenants ... or is a commercial or industrial building, the owner is responsible for and the property is subject to the provisions of this article 155 pertaining to **licensing***" (12-155-118(2)).

Three ways plumbing is not a copy of electrical

Difference	What the statute says
No inspection condition	The plumbing exemption is not conditioned on the work being inspected. The permit and inspection duty in 12-155-120 still applies to the work — but skipping it does not retroactively dissolve your license exemption the way 12-115-116(2) does. Do not read this as permission to skip: unlicensed plumbing is also a class 2 misdemeanor (12-20-407(1)(a)(IV)).
It covers gas piping	"Any plumbing or gas piping installation in any new construction" needs the permit and the inspection (12-155-120(1)(a)). "Gas piping" means "any arrangement of piping used to convey fuel gas, supplied by one meter" (12-155-103(2)) — so the propane runs in a mountain house sit inside the state plumbing permit. The board adopts a separate Colorado fuel gas code for it (12-155-106(5)).
A different local carve-out test	Electrical defers to a local building department that "meets the minimum standards" and processes building permits. Plumbing defers only "where the local entity ... conducts inspections and issues plumbing permits" (12-155-120(1)(a)). Different tests, so a jurisdiction can run one program and not the other — which is why CO.0 makes you ask the two questions separately.

Everything else runs parallel: permit before the work (12-155-120(1)(c)(I)); inspection within three working days; permits valid twelve months with the same extension routes (12-155-120(3)(a)); and "qualified applicant" again expressly includes "a homeowner performing work on the homeowner's home" (12-155-120(11)(c)).

The Colorado plumbing code is a statewide minimum by design: the board "shall establish a Colorado plumbing code ... [that] must represent the minimum standards for installation, alteration, and repair of plumbing equipment and systems **throughout the state**" (12-155-106(1)), and "Local governments are permitted to amend the code for their jurisdictions as long as the amendments are at least equal to the minimum requirements" (12-155-106(2)). What the board has actually adopted sits in **3 CCR 720-1**: the **Colorado Plumbing Code** is built on named chapters of the **2021 International Plumbing Code** and the 2021 IRC, and the **Colorado Fuel Gas Code** on the **2021 International Fuel Gas Code** and the IRC — in each case "with certain additions, revisions, and deletions," and expressly not including later editions.

Note the five-year gap. As of August 2026 Colorado's statewide electrical minimum is the 2026 NEC while its plumbing and fuel-gas minimums are built on 2021 model codes — you will wire to a code edition that took effect this year and plumb to one five years older, on the same house, under two different boards. Check each rule yourself at sos.state.co.us/CCR before you rely on either date.

C.R.S. 12-155-118(2), 12-155-120(1)(a), (1)(c)(I), (3)(a), (11)(c), 12-155-103(2), 12-155-106(1), (2), (5); 12-20-407(1)(a)(IV). Adopted codes read from 3 CCR 720-1 (State Plumbing Board Rules and Regulations) and 3 CCR 710-1 (State Electrical Board Rules and Regulations) at sos.state.co.us/CCR, August 2026.

The rule that covers both trades

Being exempt from a **license** is never being exempt from a **permit**. Both articles require a permit before work begins and an inspection after, on every new-construction installation, no matter who does the work — and both name you, the homeowner, as a person entitled to buy that permit. The exemption saves you from needing a licensed tradesperson. It does not save you from the paperwork — and on the electrical side, the paperwork is what keeps the exemption alive.

YOUR PLANS — YOU MAY DRAW THEM YOURSELF

A useful thing Colorado gives you, and few owner-builders know it. The architects' practice act does not reach houses: *"Nothing in this part 4 shall prevent any person ... from preparing plans and specifications for, designing, planning, or administering the construction contracts for construction ... of ... **One-, two-, three-, and four-family dwellings, including accessory buildings commonly associated with those dwellings**" (12-120-403(1)(a)). The county statute that otherwise demands a seal defers to it: plans must bear the seal of a Colorado-licensed architect or engineer *"unless the preparation of plans and specification is exempted by section 12-120-403"* (30-28-205(3)).*

The limit is local and real: 12-120-403(2) preserves every county's and municipality's power to adopt building codes, and across the Front Range's expansive soils and the high country's snow loads departments routinely require an **engineered foundation design, a soils report**, and sealed structural calculations. That is a code requirement on the structure, not a licensing requirement on the draftsman. Ask exactly which sheets need a seal before you draw.

C.R.S. 12-120-403(1)(a), (2); 30-28-205(3). Read August 2026. Which sheets your jurisdiction requires sealed is a local fact — confirm it.

THE LOCAL LAYER — TWO VERIFIED EXAMPLES OF HOW FAR IT VARIES

State law is the floor. Whichever local government permits your parcel sets its own owner-builder terms on top of it, and Colorado's differ more than almost any other state's. Two verified examples:

Same state, same statutes — two very different counters

Jurisdiction	What its own pages say
Denver City & County	Single-family only — not ADUs, townhomes, condos, or duplexes, <i>"even for the unit where you live."</i> <i>"You must be the legal owner and resident"</i> ; permits <i>"cannot be issued to trusts, LLCs, or corporations."</i> An exam is required before doing electrical, plumbing, or mechanical work (a state license may substitute). <i>"You must occupy the home for at least one year after work is complete,"</i> and may build a new home as a homeowner only <i>"once every five years."</i>

Same state, same statutes — two very different counters

Jurisdiction	What its own pages say
Pikes Peak Regional Building Dept.	"As a homeowner you may obtain a permit only if you are performing the work on your primary residence, which you own and reside in. You cannot perform work on a rental property you own nor a home you do not reside in." And the line worth memorizing: "It is illegal for a homeowner to obtain a permit for a contractor hired to do the work for you." Build without a permit and a Certificate of Alleged Non-compliance is filed with the county clerk, placing a lien against the property.

Four questions, one email

Neither set of terms above is in any statute — both are local policy, and yours will differ again. Before you count on doing anything yourself, ask your permit office: **(1)** must an owner-builder register as a contractor? **(2)** is there an owner-builder affidavit or agreement, and what does signing it commit you to — ownership, occupancy, a period you may not sell, an exam? **(3)** which trades will you let me permit personally? **(4)** which code editions and local amendments? A dated written answer from the office that will issue your permit outranks anything printed in any guide, including this one.

Denver CPD, "Applying for Permits as a Homeowner" (denvergov.org); Pikes Peak Regional Building Department, Homeowner Permits (pprbd.org). Both read August 2026; local policy changes without notice.

POSITION CHECKLIST — SETTLE THESE BEFORE YOU PLAN THE WORK

Every line is a decision this document has shown to be yours to make — and most of them change the budget. Work down it with a pen.

Step 1 — Who permits your parcel

	Item	Date	Notes / who answered
☐	Confirmed whether the parcel is inside a municipality or in unincorporated county, and which government permits it Jurisdiction: _____		
☐	Confirmed whether that jurisdiction has adopted a building code, and which edition, with the local amendment list in hand Edition: _____ Amendments: _____		

Step 1 — Who permits your parcel

	Item	Date	Notes / who answered
☐	ELECTRICAL: asked whether the jurisdiction issues electrical permits and inspects, or whether the State Electrical Board does Issued by: _____		
☐	PLUMBING & GAS: asked the same question separately — the statutory test is different and the answer can differ Issued by: _____		
☐	Asked whether an owner-builder must register as a contractor, and whether an owner-builder affidavit is required — and what signing it commits you to		
☐	Written answers filed with this kit Who answered: _____ Date: _____		

Step 2 — Trade-by-trade decisions

	Item	Date	Notes
☐	ELECTRICAL: decided between a licensed electrician and the homeowner exemption — and understood that relying on the exemption REQUIRES the work to be inspected (12-115-116(2))		
☐	If hiring: license verified at dora.colorado.gov , and the firm confirmed as a registered electrical contractor License #: _____ Verified: _____		
☐	PLUMBING & GAS: decided between a licensed plumber and the homeowner exemption — and confirmed the gas piping is inside the plumbing permit, not the HVAC scope		
☐	Confirmed the house is being built to occupy, not to sell or rent — the exclusions in 12-115-116(2) and (4) end the exemption either way		
☐	Permit term planned: asked for a permit longer than twelve months AT APPLICATION if the build will run long (12-115-120(6)(a)) Term granted: _____		

Step 2 — Trade-by-trade decisions

	Item	Date	Notes
☐	Utility's new-service requirements confirmed — no permanent power without proof of final electrical approval (12-115-120(1)(c)) Utility: _____		

Sources — every Colorado claim in this document (verified August 2026)

What this document states	Authority
No state GC or HVAC license as of August 2026; Title 12 licenses electricians and plumbers only	C.R.S. Title 12 article list
Counties are AUTHORIZED to adopt a building code — not required; the permit duty exists only after adoption; agricultural shelter may be excepted	C.R.S. 30-28-201(1), 30-28-205(1)
Electrician license required	C.R.S. 12-115-109(1)
Homeowner electrical exemption is conditioned on the work being inspected	C.R.S. 12-115-116(2)
Sale, lease, or rental development removes the exemption; maintenance/repair of existing facilities needs no license, inspection, or fee	C.R.S. 12-115-116(2), (4), (6)
State electrical permit unless a qualifying local building department issues it; permit and fee BEFORE work begins; inspection within three working days	C.R.S. 12-115-120(1)(a)(I), (2)(a), (2)(b)
A homeowner working on their own home is a "qualified applicant" for both permits	C.R.S. 12-115-120(11)(c); 12-155-120(11)(c)
No utility service without proof of final electrical approval	C.R.S. 12-115-120(1)(b), (1)(c)
Statewide electrical minimum is the 2026 NEC, effective August 1, 2026	3 CCR 710-1, Rule 1.5(A)
Homeowner plumbing exemption carries NO inspection condition; unlicensed practice in either trade is a class 2 misdemeanor	C.R.S. 12-155-118(2); 12-20-407(1)(a)
State plumbing permit covers GAS PIPING; different local carve-out test	C.R.S. 12-155-120(1)(a); 12-155-103(2)
Local owner-builder terms vary far beyond the statutes	denvergov.org; pprbd.org
One- to four-family dwellings are exempt from the architect-licensing requirement	C.R.S. 12-120-403(1)(a); 30-28-205(3)

Read any C.R.S. section cited above at **leg.colorado.gov** → Laws → Colorado Revised Statutes, which serves the official titles as PDFs. Read any rule cited as a **CCR** number — the State Electrical Board's rules are 3 CCR 710-1, the State Plumbing Board's are 3 CCR 720-1 — in the Code of Colorado Regulations at **sos.state.co.us/CCR**, where the PDF is the official version and every past version is listed with its effective date. Beware third-party statute mirrors: they lag the session laws, and Colorado renumbered its entire professions title in 2019, so older guides cite sections that no longer exist. All statute and rule text in this kit verified August 2026.